

**Memorandum of Understanding between
Laramie County School District #1
And
The City of Cheyenne**

THIS AGREEMENT, made and entered into this 24th day of August 2020, by and between the City of Cheyenne, a municipal corporation organized under the laws of the State of Wyoming, acting by and through its political subdivision, the Cheyenne Police Department, hereinafter referred to as the "Department," whose address is 2101 O'Neil Avenue, Cheyenne, Wyoming 82001, and the Laramie County School District No. 1, hereinafter referred to as the "District," whose address is 2810 House Avenue, Cheyenne, Wyoming 82001.

WITNESSETH

WHEREAS, the District has identified the need for law enforcement services at various schools and school-related events under its control and supervision; and

WHEREAS, the Department is a municipal police agency engaged in providing services to the City of Cheyenne; and

WHEREAS, the District desires to obtain the law enforcement services of the Department, and the Department desires to provide said services.

NOW, THEREFORE, IN CONSIDERATION of the mutual promises and covenants hereinafter contained, the parties agree as follows:

1. This Agreement shall be in effect from August 1, 2020, through July 31, 2021. The Department shall have no obligation under this Agreement to provide law enforcement services to the District at any school location during any time that such school location is closed by scheduled or short-term official action of the District. Except as provided in this Agreement, the Department shall have no obligation to provide law enforcement services to the District, as described in this agreement, beyond the hours provided for in this Agreement.

a. The District shall have authority to flex an officer's schedule to assist during special events, short-term official closures, or other circumstances.

b. Should any non-weather related event require long-term official closure of school locations for more than five (5) consecutive school days, the District may request limited law enforcement presence with the balance of officers' daily hours redirected to supervise schools and/or released back to the Department as best represents the interests of both the District and the Department. If such interests and duties cannot be agreed, this agreement shall be suspended for the remainder of the period of official closure, and payments vacated for duties not performed during such period.

2. The Department shall appoint a representative who shall be responsible for managing and coordinating the Department's performance under this Agreement, and shall identify this representative to the District by name and telephone number.

3. The Department agrees to provide routine law enforcement services to the District under the terms and conditions herein contained. The duties assumed by the Department under this Agreement are duties owed generally to the public, and by entering this Agreement, the Department does not assume any other duty to the District, nor does the Department assume any duty to any particular individual.

4. The parties agree that this Agreement does not create an agency relationship between the Department and the District, and no representations of any kind, type or

nature made by one party shall be binding upon or create a duty in the other party.

5. In return for law enforcement services to be provided by the Department pursuant to this Agreement, the District agrees to pay to the City Treasurer for the 2020-2021 school year the sum as set forth in paragraph 13a. Said sum shall be invoiced to the District monthly and in arrears. The District shall reimburse the Department for additional costs incurred by the Department in the performance of services described in Paragraphs 13b and 13c at the rates prescribed, for which the District will be invoiced monthly.

6. All costs of salary and benefits incurred by the Department in the performance of duties under this Agreement shall be paid by the Department, and the District shall reimburse the Department for all such costs, as defined in Paragraph 13 of this Agreement,

7. Police officers assigned to provide services under this Agreement shall, at all times, be employees of the City of Cheyenne Police Department. The Department shall comply with all federal, state, and local laws and ordinances regarding the employment relationship between the City of Cheyenne and police officers assigned to provide services under this Agreement. The Department shall exercise sole responsibility for the supervision and evaluation of officers assigned under this agreement with input from Building Administration. In extenuating circumstances, the District may request reassignment/replacement of a School Resource Officer.

8. The District and Department are aware that each party to this Agreement is subject to the supervision of separately elected political entities. Each party to this Agreement obtains funding which is subject to annual budget approval. Each party hereto shall notify the other immediately if a party's future fiscal year funding for this Agreement is curtailed or eliminated.

9. Each party hereto shall be responsible for its own negligence and the negligence of its agents, employees, representatives and other personnel. The Department is a participant in the Wyoming Association of Risk Management (WARM) and is insured by WARM to the limits described in the Wyoming Governmental Claims Act, Wyo. Stat. § § 1-39-101 through 1-39-120 (1988), *as amended*. The City and the District do not waive any applicable defenses and expressly reserve the right to invoke governmental immunity pursuant to the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101, *et seq.*, for any claims arising out of performance of this Agreement.

10. Third Parties: The parties do not intend to create in any other individual or entity the status of third party beneficiary, and this Agreement shall not be construed so as to create such status. The rights, duties and obligations contained in this Agreement shall operate only between the parties to the Agreement, and shall inure solely to the benefit of the parties to this Agreement.

11. Department personnel assigned by the Department pursuant to this Agreement shall be directly supervised by the Department's Patrol Commander. Such personnel will coordinate their activities with the principal of each of the District's schools identified herein, however will be subject to other assignments in times of emergencies, as determined by the Department. In selecting personnel to provide services pursuant to this Agreement, the Department shall consider each officer's interest in the assignment, ability to deal with the District's students, and any special training which may have been received. The Department shall request a District representative in the selection of the officers assigned under this agreement and consult with the District prior to any changes in SRO assignments expected to occur within the normally-scheduled school year, with consideration given to preserving the student-officer relationships critical to the success of this program. The Department does not guarantee or commit to a specific number of hours, and law enforcement needs of the Department are paramount to the services provided under this Agreement. The Department shall reimburse the District for any hours related to the diversion of officers from normal SRO

duties for a half-day or more.

12. Department personnel providing services pursuant to this Agreement shall conduct themselves as police officers and shall at all times follow the policies and procedures of the Department. All matters of officer conduct and performance shall be referred to the Department for disposition and resolution. Further, the Department will be enforcing state laws and regulations, and will not be required to enforce the District's policies and procedures.

13. The Department shall provide routine law enforcement services to the District at schools located within Cheyenne city limits at the following locations and at the following times:

a. For the 2020-2021 school year, seven officers and one Sergeant stationed variously at High Schools, Junior High Schools, and Elementary Schools within the District as may be determined by mutual agreement between the Department and the District. Officers assigned to these locations shall perform routine law enforcement services during regular school hours. The Officers will also be involved with current programs the District is promoting for drug/alcohol awareness and anti-bullying as may be determined by mutual agreement between the Department and the District. The base contract period shall be for one-hundred- eighty-five (185) days, for which the District shall reimburse the Department 75% of the actual total annual salary and benefits for seven officers and one Sergeant for one year. Compensation of mid-year replacement officers will be at the budgeted rate or actual cost, whichever is less. The District shall reimburse the Department for additional services provided beyond the standard 40-hour week at the overtime rate of time-and-a-half per hour.

b. If the District elects to deploy an officer for Summer School 2021, one officer will be stationed at a school and for hours to be determined by mutual agreement between the Department and the District but responsible for calls at all schools participating in the Summer School Program. A sum equal to the base salary and benefits for one officer for the period Summer School is in session shall be invoiced to the District monthly and in arrears. The officer assigned to this location shall perform routine law enforcement services during regular Summer School hours.

c. For events and programs provided outside the 185-day base contract, Officer(s) as may be determined by mutual agreement between the Department and the District. The District shall reimburse the Department at the Officer's hourly rate of salary and benefits.

d.. If any school Officer is absent for five (5) or more consecutive school days, the Department shall provide a replacement officer to cover the Officer's duty assignment at the actual cost of the replacement officer. Further, the District shall not be billed for periods when individual officers are absent from their assigned duties/school(s), to include periods of professional training for collateral duty. The SROs are encouraged, when possible, to take personal leave during scheduled school breaks.

e.. Except as provided for emergencies in Paragraph 11 of this Agreement, police officers assigned to provide services under this Agreement shall devote substantially all of their working time to the District during regular school hours and at such other times as may be determined by mutual agreement between the Department and the District.

14. Access to District Property.

a. The District shall provide assigned School Resource Officers with keys and/or access cards necessary to enter their assigned school(s).

b. When after-hours emergencies or other circumstances warrant, officers not specifically assigned as SROs are considered an extension of the assigned SRO. Any access to District property by non-SRO Department personnel shall be

reported to the Assistant Superintendent of Support Operations within twenty-four (24) hours of access.

- c. The Department shall notify the District within twenty-four (24) hours after any staff change that would require addition or revocation of access permissions.

15. This Agreement shall not be modified or altered unless mutually agreed upon by the parties in writing.

16. This Agreement contains the entire understanding of the parties. There are no understandings between the parties, written or otherwise, not contained herein. Each party acknowledges that they have consulted with, or have had the opportunity to consult with, legal counsel regarding this Agreement.

17. If any provision, section, subsection, sentence, clause or phrase of this Agreement is invalidated by any court of competent jurisdiction, such a holding shall not affect the validity of the remainder of the Agreement, which shall continue in full force and effect.

IN WITNESS WHEREOF, the parties hereto have caused this instrument to be executed as of the day and year first above written.

CITY OF
CHEYENNE BY:

Marian J. Orr, Mayor

(SEAL)

ATTEST

:

Kristina F. Jones, City
Clerk

LARAMIE COUNTY SCHOOL DISTRICT NO.1

BY:

Title:_____